

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rachel Buhner	Team: Team # 3	CCRB Case #: 201408320	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 08/14/2014 6:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/14/2016	Precinct: 45		
Date/Time CV Reported Thu, 08/14/2014 11:58 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 08/14/2014 11:58 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Anthony Irizarry	05414	899377	WARRSEC
2. DT3 Douglass Adams	6756	937943	WARRSEC
3. POM Harish Mansharamani	25683	941065	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Anthony Irizarry	Abuse: Det. Anthony Irizarry refused to show a search warrant to § 87(2)(b)	A . Unfounded
B . DT3 Anthony Irizarry	Abuse: Det. Anthony Irizarry authorized the entry and search of § 87(2)(b) in the Bronx.	B . Substantiated
C . POM Harish Mansharamani	Abuse: PO Harish Mansharamani entered and searched § 87(2)(b) in the Bronx.	C . Substantiated
D . DT3 Douglass Adams	Abuse: Det. Douglass Adams entered and searched § 87(2)(b) in the Bronx.	D . Unsubstantiated
E . POM Harish Mansharamani	Abuse: PO Harish Mansharamani refused to provide his name to § 87(2)(b)	E . Unsubstantiated

Case Summary

On August 14, 2014, at approximately 6:00am, Det. Anthony Irizarry, PO Harish Mansharamani, and Det. Douglass Adams arrived at § 87(2)(b)'s residence, a detached basement apartment located at § 87(2)(b) in the Bronx, and knocked on the door. His daughter, § 87(2)(b) who was staying at the apartment temporarily, opened the door and the detectives informed her that they had a warrant for § 87(2)(b). § 87(2)(b) made a general request to see the warrant, and her request was allegedly denied (**Allegation A**). The detectives then entered the apartment (**Allegations B, C and D**), despite § 87(2)(b)'s lack of consent.

Det. Irizarry approached § 87(2)(b) who was seated on his bed, and asked him for identification. After comparing his birth date with the birth date on the warrant, it was determined that he was not the subject of the warrant, and that the warrant was issued for a different § 87(2)(b) who resided at a different address. After this was determined, a noise prompted PO Mansharamani to open the door to the bathroom (**subsumed in Allegation C**), where he found § 87(2)(b) § 87(2)(b)'s boyfriend. § 87(2)(b) had an open I-card, and he was apprehended inside the apartment. § 87(2)(b) then asked PO Mansharamani for his name, which he allegedly refused to provide (**Allegation E**). § 87(2)(b) was then removed from the residence and taken into custody.

Mediation, Civil and Criminal Histories

- A Notice of Claim inquiry was submitted to the Office of the New York City Comptroller on January 30, 2015, and as of March 6, 2015, no Notice of Claim was filed by § 87(2)(b) or § 87(2)(b) (encl. 3N).
- Mediation was not offered in this case due to § 87(2)(b)'s arrest.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) or § 87(2)(b) (encl. 2E).
- Det. Irizarry has been a member of the NYPD for 23 years, and has had 16 previous CCRB allegations in nine cases with no substantiated allegations. He has three previous entry and search allegations, all of which were exonerated (encl. 2A-2B).
- PO Mansharamani has been a member of the NYPD for nine years, and has had 14 previous CCRB allegations in four cases with no substantiated allegations. § 87(2)(g)
- Det. Adams has been a member of the NYPD for nine years, and has had seven previous allegations in five cases with no substantiated allegations. § 87(2)(g)

Civilian Statement
Complainant/Victim

§ 87(2)(b) (encl. 3C-3H)

- On August 27, 2014, § 87(2)(b) was interviewed at the CCRB. Her statement was generally consistent with her original phone complaint. Originally in her phone statement, § 87(2)(b) stated that prior to the officers entering the apartment she asked to see a warrant, and one was quickly shown to her, whereas in her CCRB statement, she stated she requested to see a warrant when the officers were at the door, but was ignored.
- § 87(2)(b) is a white female who is § 87(2)(b). She has blonde hair and blue eyes.
- § 87(2)(b) was temporarily staying at her parent's residence, which is a detached basement apartment that is only accessible from the front door, which leads outside.
- § 87(2)(b) was told by the officers that they were at her residence because of an arrest warrant for her father, § 87(2)(b) from 1981.
- She asked to see a copy of the warrant, and stated that in response to her request, she was shown a piece of paper with § 87(2)(b). She was also shown a paper with a mug shot of § 87(2)(b) that said "Wanted" on it, as well as a paper with § 87(2)(b) typed in green ink; however, she did not know what the document was and did not observe any other information on it. These were three separate papers, and were all type written.
- She did not provide the officers consent to enter, and alleges that they pushed past her and thus gained entry into the apartment.
- Once inside, § 87(2)(b) § 87(2)(b)'s boyfriend, was found hiding in the bathroom and was arrested.
- § 87(2)(b) also alleges that while the officers were in the apartment, she requested PO Mansharamani's name, which he refused to provide.

Witness

§ 87(2)(b) (encl. 3I-3M)

- § 87(2)(b) was interviewed at the CCRB on October 15, 2014. He is a § 87(2)(b) old Hispanic male who is § 87(2)(b).
- § 87(2)(b) was hiding in the bathroom for the majority of the incident, and stated he did so because he was staying at the § 87(2)(b)'s without the permission of the landlord, and was concerned that the landlord was at the door. As a result, he was unaware of the circumstances surrounding the entry of the apartment, as well as the majority of the events that took place prior to his exiting the bathroom.
- § 87(2)(b) overheard § 87(2)(b) ask to see a copy of the warrant while he was still in the bathroom, and he did not hear any officer respond to the request.
- After exiting the bathroom, § 87(2)(b) observed Det. Irizarry holding a piece of paper that said "Wanted", and had a mug shot of § 87(2)(b) from a prior arrest.

Additional Witnesses

- Attempts were made to arrange for § 87(2)(b) to come to the CCRB and provide a sworn statement. Two calls were placed to § 87(2)(b) and two appointments were scheduled for him to appear at the CCRB. However, § 87(2)(b) did not appear for either appointment (encl. 6C-6D).
- § 87(2)(b), § 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

NYPD Statements

Subject Officer: DET. ANTHONY IRIZARRY (encl. 4G-4M)

- Det. Irizarry was interviewed at the CCRB on December 18, 2014.
- On the incident date, Det. Irizarry was conducting warrant enforcement. In particular, he was working on a case involving § 87(2)(b) who had an open I-card. After speaking with § 87(2)(b)'s brother, he was informed that § 87(2)(b) was staying with § 87(2)(b). Det. Irizarry located the § 87(2)(b) residence, and after conducting a warrant check, found an active bench warrant from 1981 for an individual named § 87(2)(b) [REDACTED].
- Det. Irizarry, Det. Adams, and PO Mansharamani went to § 87(2)(b) in regards to the warrant. § 87(2)(b) answered the door and did not provide consent for the officers to enter; however, upon hearing that he had a warrant, § 87(2)(b) provided verbal consent for the officers to enter. At no point did he come to the door, and he was inside the apartment when consent was given.
- Det. Irizarry and PO Mansharamani then entered the apartment, and Det. Irizarry asked § 87(2)(b) for identification. He compared the birthdate on the warrant to the birthdate of § 87(2)(b) and it was determined that the § 87(2)(b) at § 87(2)(b) [REDACTED] was not the subject of the warrant. After this was determined, a noise which sounded like movement prompted Det. Irizarry to instruct PO Mansharamani to open the bathroom door, which he did in the interest of officer safety, as the § 87(2)(b) stated no one else was in the apartment. Upon opening the bathroom door, § 87(2)(b) was found to be hiding, and he was then arrested.
- Det. Irizarry stated that § 87(2)(b) did request to see a copy of the warrant, and that he showed the bench warrant for § 87(2)(b) to her. He and the other officers did not walk forward towards the apartment, thus forcing § 87(2)(b) to back up and allow them to enter. He did not hear § 87(2)(b) ask PO Mansharamani for his name, though he did state that § 87(2)(b) later asked him for his name, and he provided her with a business card with the relevant information.

Subject Officer: PO HARISH MANSHARAMANI (encl. 4N-4R)

- On December 18, 2014, PO Mansharamani was interviewed at the CCRB.
- On the incident date, he and Det. Adams were assisting Det. Irizarry, attempting to locate two individuals, one the subject of an active warrant and the other the subject of an open

I-card. Upon Det. Irizarry gaining entry into the apartment, he instructed PO Mansharamani to enter as well. At no point did he hear § 87(2)(b) provide verbal consent to enter, and he was unaware as to how Det. Irizarry gained entry into the residence.

- PO Mansharamani indicated that when he entered the apartment, Det. Irizarry was speaking to an older, white male, and a younger, white female, whom the investigation determined to be § 87(2)(b) and § 87(2)(b) respectively.
- As Det. Irizarry was speaking to § 87(2)(b) a noise, the specifics of which he could not recall, prompted PO Mansharamani to open the bathroom door, where he found § 87(2)(b) hiding. He was then placed under arrest.
- PO Mansharamani denied being present when Det. Irizarry initially entered the residence, and stated he was standing to the side of the house. He did not hear § 87(2)(b) ask to see a copy of the warrant. He also did not walk forward towards the apartment, thus forcing § 87(2)(b) to back up and allow the officers to enter. He did not hear § 87(2)(b) ask any of the officers for their names, himself included.

Subject Officer: DET. DOUGLASS ADAMS (encl. 4A-4E)

- On December 16, 2014, Det. Adams was interviewed at the CCRB.
- On the incident date, Det. Adams and PO Mansharamani were assisting Det. Irizarry, attempting to locate two individuals, one the subject of an active warrant and the other the subject of an open I-card.
- Det. Adams was positioned to the side of the residence to monitor the exterior, and could not recall if he was able to observe how Det. Irizarry and PO Mansharamani enter. He did not observe the other officers walk forward towards the front door, thus forcing § 87(2)(b) to back up and allowing them to enter.
- Det. Adams remained standing outside, near the doorway of the residence. The front door was open, but he could not recall what he observed or remember hearing anything out of the ordinary. He was then instructed to retrieve the “rugby”, an electronic device used to run suspects’ names, from the police van, which he did.
- He returned with the device and remained in the doorway. § 87(2)(b) had been removed from the bathroom by the time he returned, though he could not recall if he was in handcuffs. Det. Adams then escorted § 87(2)(b) to the prisoner van. The only time Det. Adams spoke to § 87(2)(b) was when § 87(2)(b) was being placed in the police van.
- Det. Adams did not recall hearing § 87(2)(b) ask any officer for his name, nor did he recall entering the apartment. He stated that what stood out most to him that day was that he was very ill with a sinus infection.

Police Documents

- Det. Irizarry was in possession of a bench warrant from 1981 for § 87(2)(b) which he obtained by running unspecified computer checks. The subject of the warrant was a § 87(2)(b) year old black male whose last known address was § 87(2)(b) in the Bronx. He has brown eyes and brown hair, § 87(2)(b) (encl. 5K).
- Det. Irizarry was also investigating an I-card for § 87(2)(b) NYSID# § 87(2)(b). The pedigree information listed on the I-card indicates that § 87(2)(b) is a § 87(2)(b) black male, § 87(2)(b). He has brown hair and brown eyes, and his address is listed as at § 87(2)(b), in the Bronx (encl. 5M).

Finding and Recommendations

Explanation of Subject Officer Identification

Det. Irizarry, PO Mansharamani, and Det. Adams all acknowledged interacting with the civilians on the incident date. By his own admission, Det. Irizarry was the lead detective in this case, and the Det. Adams and PO Mansharamani corroborated this statement, also reiterating that they were assisting Det. Irizarry that day.

Recommendations

Allegation A—Det. Anthony Irizarry refused to show a warrant to § 87(2)(b)

It is undisputed that § 87(2)(b) requested to see a copy of the bench warrant while the officers were at the residence. Upon answering the door and prior to their entry, § 87(2)(b) alleged in her sworn statement that she made a general request to the three officers to see a copy of the warrant, and that this request was denied. However, in her initial complaint, § 87(2)(b) indicated that she requested to see a copy of the warrant while the officers were at the door, and one was quickly shown to her. In his testimony, Det. Irizarry confirmed that § 87(2)(b) did ask to see a warrant prior to their entry; and that in response to this request, he showed § 87(2)(b) a copy of the warrant for her father, § 87(2)(b).

According to Det. Adams' testimony, he was monitoring the exterior of the house when § 87(2)(b) opened the door, and stated that Det. Irizarry and PO Mansharamani were the only two officers who interacted with § 87(2)(b) prior to the entry. He further stated that based on his positioning, he was unable to hear any of the conversation between § 87(2)(b) and the two officers. According to Det. Mansharamani's testimony, only Det. Irizarry was present at the front door when § 87(2)(b) opened it, and he was positioned to the side of the house at that time. He did not observe the door being opened, and was only called over to the entryway by Det. Irizarry as he was entering the apartment. At no point did he hear § 87(2)(b) request to see a copy of the warrant prior to entering the apartment.

Additionally, once Det. Irizarry and PO Mansharamani were inside of the residence, § 87(2)(b) stated that she again requested to see a copy of the warrant, and in response, Det. Irizarry showed her a piece of paper containing the address "§ 87(2)(b) § 87(2)(g)

§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Based on both § 87(2)(b)'s testimony and Det. Irizarry's statement, it is undisputed that § 87(2)(b) requested to see a copy of the warrant at some point while interacting with the officers at her residence. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) Therefore, it is recommended that **Allegation A** be closed as **unfounded**.

Allegation B—Det. Anthony Irizzary authorized the entry and search of § 87(2)(b) in the Bronx.

Allegation C— PO Harish Mansharamani entered and searched § 87(2)(b) in the Bronx.

It is undisputed that Det. Irizzary authorized the entry and search of § 87(2)(b) and that it was predicated on his possession of a bench warrant for a § 87(2)(b) (encl. 5K). Det. Irizzary was the assigned detective in the case for § 87(2)(b) who had an open I-card. During his investigation, Det. Irizzary was informed by § 87(2)(b)'s brother that § 87(2)(b) was residing temporarily with his girlfriend, § 87(2)(b) and provided the general vicinity of the residence as Westchester Avenue near the last train stop. Further investigation by Det. Irizzary determined that the location in question was § 87(2)(b) the residence of § 87(2)(b) § 87(2)(b)'s father. He was aware of their relationship because they had filed an unspecified complaint together in the past. He also determined that there was an active bench warrant for an individual by the name of § 87(2)(b) however, the address on the warrant did not match the location where the § 87(2)(b) reside, and Det. Irizzary determined that the § 87(2)(b) living at § 87(2)(b) was the subject of the warrant solely based on the spelling of his name matching the spelling of the name on the aforementioned warrant. No additional steps or investigative actions were taken to verify this information.

It is undisputed that § 87(2)(b) did not provide consent for the officers to enter § 87(2)(b) While speaking with the officers prior to their entry, § 87(2)(b) was informed that they had a bench warrant for § 87(2)(b) Det. Irizzary stated that at this point, a male voice inside the apartment identified himself as § 87(2)(b) and instructed the officers to enter. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Once inside the apartment, Det. Irizzary spoke to § 87(2)(b) and asked for identification. It is undisputed that upon comparing the birthdays of § 87(2)(b) that he was not the subject of the warrant in Det. Irizzary's possession. After this was determined, a knocking noise, as if someone was moving, prompted PO Mansharamani to open the bathroom door, where he discovered § 87(2)(b) § 87(2)(b) hiding. § 87(2)(b) was then handcuffed and taken into custody.

In the absence of consent, in order for an entry predicated on a bench warrant to be legal, two criteria must be satisfied. First, the officer must reasonably believe that the residence belongs to the suspect in question, and second, the officer must reasonably believe that the suspect is home at the time the warrant is executed. A reasonable belief is based on the facts and circumstances of which the officer is aware. In order for a belief to be reasonable, the entirety of the information possessed by the officer must be taken into consideration. Furthermore, all the information possessed by the officer when the warrant is executed, as well as the age of the information, also assists in determining if the belief is reasonable. *People v. Smith*, 9 Misc. 3d 1105(A) (Sup. Ct., Bronx, Co. 2005) (encl. 1A)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
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§ 87(2)(g) [REDACTED]
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§ 87(2)(g) [REDACTED]
[REDACTED]
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[REDACTED]
[REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] it is recommended that **Allegations B** and **C** be closed as **substantiated**.

Allegation D— Det. Douglass Adams entered and searched § 87(2)(b) [REDACTED] **in the Bronx.**

§ 87(2)(g) [REDACTED] § 87(2)(b) [REDACTED]
stated that Det. Adams entered the apartment with the other officers; however, § 87(2)(b) [REDACTED]

stated that he only observed Det. Adams in the prisoner van. Det. Adams did not recall entering the apartment, and testified that he remained in the doorway, as well as returned to the van, during the incident. Neither Det. Irizarry nor PO Mansharamani indicated that Det. Adams ever entered the apartment, and PO Mansharamani recalled Det. Adams remaining in the van while he and Det. Irizarry entered the apartment. § 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation E—PO Harish Mansharamani refused to provide his name to § 87(2)(b)

§ 87(2)(g)
§ 87(2)(b) alleged that she asked PO Mansharamani for his name while still inside the apartment and that he denied the request. In his sworn statement, § 87(2)(b) did not corroborate this allegation, or make any mention of overhearing § 87(2)(b) ask any officers for their names. Det. Irizarry did not overhear § 87(2)(b) request PO Mansharamani's name inside the apartment. However, Det. Irizarry testified that after § 87(2)(b) was removed from the residence, § 87(2)(b) asked him for his name, and he provided her with a business card. Det. Adams denied hearing § 87(2)(b) request PO Mansharamani's name while inside the residence. Det. Adams stated that he remained outside in the doorway, did not enter the apartment, and only remained there for a few minutes before returning to the prisoner van.

§ 87(2)(g)
Therefore, it is recommended that **Allegation E** be closed as **unsubstantiated**.

Team: 3/Pod 16

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____